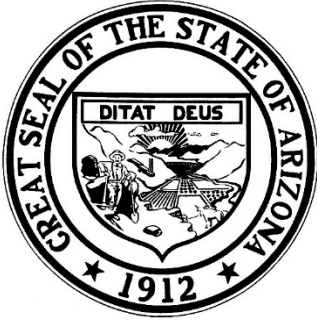




Bill Number: S.B. 1400

Payne Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows a law enforcement agency (LEA) to establish a crisis response services program, rather than a peer support counseling program, to provide support to public safety employees who have been in or exposed to a traumatic event or an emotional experience during employment.
2. Exempts, from being confidential and privileged from disclosure, crisis response services communication if:
 - a) the designated person waives the person's right to confidentiality;
 - b) any communications or advice given within the program indicates clear and present danger to the designated person or to any other person;
 - c) the communication or advice is made during the course of a criminal investigation;
 - d) the designated person violates any of the agency's policies and the violation amounts to a violation of laws that is normally enforced by a law enforcement agency; or
 - e) the designated person who received crisis response services voluntarily testifies, in which case the critical incident stress management team member or peer support team member may be compelled to testify on the same subject.
3. Requires a crisis response services designated person, rather than a peer support participant, to hold a privilege from disclosure of any crisis response services communication, rather than of any peer support communication, as prescribed.
4. Allows a wellness program to support the mental health and well-being of the law enforcement agency's employees to include crisis response services, rather than crisis counseling.
5. Exempts prescribed proceedings and records from being confidential and privileged from disclosure if:
 - a) a circumstance occurs in which the designated person waives the person's right to confidentiality;
 - b) any communications or advice given within the program indicates clear and present danger to the designated person or to any other person;
 - c) the communication or advice is made during the course of a criminal investigation;
 - d) the designated person violates any of the law enforcement agency's policies and the violation amounts to a violation of laws that is normally enforced by a law enforcement agency; or
 - e) the designated person who received crisis response services voluntarily testifies, in which case the critical incident stress management team member or peer support team member may be compelled to testify on the same subject.
6. Defines terms.
7. Removes defined terms.
8. Makes technical and conforming changes.

Amendment explanation prepared by Kendyl Mullins

03/03/2026

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1400
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 38, chapter 8, article 1, Arizona Revised
3 Statutes, is amended by adding section 38-1121, to read:

4 38-1121. Law enforcement agency; wellness program;
5 confidentiality; definitions

6 A. A LAW ENFORCEMENT AGENCY IN THIS STATE MAY ESTABLISH A WELLNESS
7 PROGRAM TO SUPPORT THE MENTAL HEALTH AND WELL-BEING OF THE LAW ENFORCEMENT
8 AGENCY'S EMPLOYEES. THE WELLNESS PROGRAM MAY INCLUDE ALL OF THE
9 FOLLOWING:

10 1. ACCESS TO ~~[MENTAL HEALTH COUNSELING]~~[LICENSED COUNSELING].

11 ~~[2. CRISIS COUNSELING]~~

12 [2. CRISIS RESPONSE SERVICES].

13 3. TRAINING, EQUIPMENT AND TECHNOLOGY NECESSARY FOR AN EMPLOYEE TO
14 PERFORM THE EMPLOYEE'S JOB.

15 4. ANY OTHER SUPPORT SYSTEMS.

16 B. IF A LAW ENFORCEMENT AGENCY CREATES A WELLNESS PROGRAM FOR THE
17 LAW ENFORCEMENT AGENCY'S EMPLOYEES, THE LAW ENFORCEMENT AGENCY SHALL
18 ESTABLISH WRITTEN POLICIES AND PROCEDURES FOR THE PROGRAM.

19 C. ALL PROCEEDINGS, RECORDS, OPINIONS, CONCLUSIONS AND
20 RECOMMENDATIONS ARISING FROM ANY ASPECT OF THE WELLNESS PROGRAM PURSUANT
21 TO THIS SECTION ARE CONFIDENTIAL AND PRIVILEGED FROM DISCLOSURE EXCEPT
22 ~~[FOR]~~ [IF] ANY OF THE FOLLOWING [OCCUR]:

23 [1. THE DESIGNATED PERSON WAIVES THE PERSON'S RIGHT TO
24 CONFIDENTIALITY.]

25 ~~[1.]~~ [2.] ~~[THE DISCLOSURE OF]~~ RELEVANT INFORMATION [IS DISCLOSED]
26 IN RESPONSE TO A CLAIM MADE BY THE HOLDER OF THE PRIVILEGE AGAINST A LAW
27 ENFORCEMENT AGENCY RELATED TO ANY PROGRAMS OR SERVICES PROVIDED BY THE
28 WELLNESS PROGRAM.

1 ~~[2. IF A PARTICIPANT'S COMMUNICATION IN THE WELLNESS PROGRAM~~
2 ~~CONTAINS ANY OF THE FOLLOWING:~~

3 ~~(a) A THREAT OF SUICIDE OR A PLAN TO CARRY OUT A SUICIDE ATTEMPT.~~
4 ~~THIS SUBDIVISION DOES NOT APPLY TO ANY PEER SUPPORT COMMUNICATION IN WHICH~~
5 ~~THE PARTICIPANT SOLELY SHARES THAT THE PARTICIPANT IS EXPERIENCING~~
6 ~~SUICIDAL THOUGHTS.~~

7 ~~(b) A THREAT OF IMMINENT AND SERIOUS PHYSICAL AND BODILY HARM OR~~
8 ~~DEATH TO A CLEARLY IDENTIFIED OR REASONABLY IDENTIFIABLE VICTIM.~~

9 ~~(c) INFORMATION RELATED TO THE ABUSE OR NEGLECT OF A CHILD OR A~~
10 ~~VULNERABLE ADULT THAT IS REQUIRED TO BE REPORTED BY SECTION 13-3620 OR~~
11 ~~46-454.~~

12 ~~(d) AN ADMISSION OF ANY CRIMINAL CONDUCT.~~

13 ~~(e) ANY INFORMATION THAT IS REQUIRED TO BE DISCLOSED BY LAW.]~~

14 [3. ANY COMMUNICATIONS OR ADVICE GIVEN WITHIN THE PROGRAM INDICATES
15 CLEAR AND PRESENT DANGER TO THE DESIGNATED PERSON OR TO ANY OTHER PERSON.

16 4. THE COMMUNICATION OR ADVICE IS MADE DURING THE COURSE OF A
17 CRIMINAL INVESTIGATION.

18 5. THE DESIGNATED PERSON VIOLATES ANY OF THE LAW ENFORCEMENT
19 AGENCY'S POLICIES AND THE VIOLATION AMOUNTS TO A VIOLATION OF LAWS THAT IS
20 NORMALLY ENFORCED BY A LAW ENFORCEMENT AGENCY.

21 6. THE DESIGNATED PERSON WHO RECEIVED CRISIS RESPONSE SERVICES
22 VOLUNTARILY TESTIFIES, IN WHICH CASE THE CRITICAL INCIDENT STRESS
23 MANAGEMENT TEAM MEMBER OR PEER SUPPORT TEAM MEMBER MAY BE COMPELLED TO
24 TESTIFY ON THE SAME SUBJECT.]

25 D. THIS SECTION DOES NOT RESTRICT OR LIMIT THE RIGHT TO DISCOVER OR
26 USE IN ANY CIVIL ACTION ANY EVIDENCE, DOCUMENT OR RECORD THAT IS SUBJECT
27 TO DISCOVERY INDEPENDENTLY OF THE PROCEEDINGS OF THE WELLNESS PROGRAM.

28 E. FOR THE PURPOSES OF THIS SECTION[;][;

29 1. "CRISIS RESPONSE SERVICES" HAS THE SAME MEANING PRESCRIBED IN
30 SECTION 38-1111.

31 2. "DESIGNATED PERSON" MEANS A LAW ENFORCEMENT OFFICER OR A
32 CIVILIAN EMPLOYEE OF A LAW ENFORCEMENT AGENCY.

33 3.] "LAW ENFORCEMENT AGENCY" MEANS A MUNICIPAL POLICE DEPARTMENT, A
34 COUNTY SHERIFF'S OFFICE, A PUBLICLY FUNDED LAW ENFORCEMENT DEPARTMENT AND
35 THE DEPARTMENT OF PUBLIC SAFETY.

36 [4. "LICENSED COUNSELING" MEANS COUNSELING PROVIDED BY A LICENSED
37 MENTAL HEALTH PROFESSIONAL.

38 5. "LICENSED MENTAL HEALTH PROFESSIONAL" HAS THE SAME MEANING
39 PRESCRIBED BY SECTION 38-672.]

40 Sec. 2. Title 41, chapter 4, article 1, Arizona Revised Statutes,
41 is amended by adding section 41-710.04, to read:

42 41-710.04. Crisis response services program; confidential
43 communications; definitions

44 A. AN AGENCY IN THIS STATE MAY ESTABLISH A [PEER—SUPPORT
45 COUNSELING] [CRISIS RESPONSE SERVICES] PROGRAM TO PROVIDE SUPPORT TO
46 PUBLIC SAFETY EMPLOYEES WHO HAVE BEEN IN OR EXPOSED TO [AN EMOTIONALLY]

1 ~~[A] TRAUMATIC [EVENT OR AN EMOTIONAL] EXPERIENCE IN THE COURSE OF~~
2 ~~EMPLOYMENT.~~

3 B. ANY ~~[PEER SUPPORT] [CRISIS RESPONSE SERVICES] COMMUNICATION~~
4 ~~SHALL REMAIN CONFIDENTIAL AND MAY NOT BE DISCLOSED TO ANY INDIVIDUAL WHO~~
5 ~~WAS NOT PRESENT AT THE [PEER SUPPORT COUNSELING] [CRISIS RESPONSE~~
6 ~~SERVICES] SESSION [OR PEER SUPPORT COMMUNICATION], EXCEPT [WHEN THE PEER~~
7 ~~SUPPORT COMMUNICATION CONTAINS] [IF] ANY OF THE FOLLOWING [OCCURS]:~~

8 ~~[1. A THREAT OF SUICIDE OR A PLAN TO CARRY OUT A SUICIDE ATTEMPT.~~
9 ~~THIS PARAGRAPH DOES NOT APPLY TO ANY PEER SUPPORT COMMUNICATION IN WHICH~~
10 ~~THE PARTICIPANT SOLELY SHARES THAT THE PARTICIPANT IS EXPERIENCING~~
11 ~~SUICIDAL THOUGHTS.~~

12 ~~2. A THREAT OF IMMINENT AND SERIOUS PHYSICAL AND BODILY HARM OR~~
13 ~~DEATH TO A CLEARLY IDENTIFIED OR REASONABLY IDENTIFIABLE VICTIM.~~

14 ~~3. INFORMATION RELATED TO THE ABUSE OR NEGLECT OF A CHILD OR A~~
15 ~~VULNERABLE ADULT THAT IS REQUIRED TO BE REPORTED BY SECTION 13-3620 OR~~
16 ~~46-454.~~

17 ~~4. AN ADMISSION OF ANY CRIMINAL CONDUCT.~~

18 ~~5. ANY INFORMATION THAT IS REQUIRED TO BE DISCLOSED BY LAW.]~~

19 ~~[1. THE DESIGNATED PERSON WAIVES THE PERSON'S RIGHT TO~~
20 ~~CONFIDENTIALITY.~~

21 ~~2. ANY COMMUNICATIONS OR ADVICE GIVEN WITHIN THE PROGRAM INDICATES~~
22 ~~CLEAR AND PRESENT DANGER TO THE DESIGNATED PERSON OR TO ANY OTHER PERSON.~~

23 ~~3. THE COMMUNICATION OR ADVICE IS MADE DURING THE COURSE OF A~~
24 ~~CRIMINAL INVESTIGATION.~~

25 ~~4. THE DESIGNATED PERSON VIOLATES ANY OF THE AGENCY'S POLICIES AND~~
26 ~~THE VIOLATION AMOUNTS TO A VIOLATION OF LAWS THAT IS NORMALLY ENFORCED BY~~
27 ~~A LAW ENFORCEMENT AGENCY.~~

28 ~~5. THE DESIGNATED PERSON WHO RECEIVED CRISIS RESPONSE SERVICES~~
29 ~~VOLUNTARILY TESTIFIES. IN WHICH CASE THE CRITICAL INCIDENT STRESS~~
30 ~~MANAGEMENT TEAM MEMBER OR PEER SUPPORT TEAM MEMBER MAY BE COMPELLED TO~~
31 ~~TESTIFY ON THE SAME SUBJECT.]~~

32 C. A ~~[PEER SUPPORT PARTICIPANT] [CRISIS RESPONSE SERVICES~~
33 ~~DESIGNATED PERSON] SHALL HOLD A PRIVILEGE FROM DISCLOSURE OF ANY [PEER~~
34 ~~SUPPORT][CRISIS RESPONSE SERVICES] COMMUNICATION IN ANY DISCIPLINARY~~
35 ~~PROCEEDING OR ANY CIVIL OR CRIMINAL PROCEEDING UNLESS IT CONTAINS~~
36 ~~INFORMATION EXEMPTED PURSUANT TO SUBSECTION B OF THIS SECTION. UNDER THIS~~
37 ~~PRIVILEGE, THE [PEER SUPPORT][CRISIS RESPONSE SERVICES] COMMUNICATION IS~~
38 ~~SUBJECT TO THE SAME PROTECTIONS AS ATTORNEY-CLIENT PRIVILEGE.~~

39 D. THIS SECTION DOES NOT PROHIBIT ANY OF THE FOLLOWING:

40 1. THE AGENCY USING OR SHARING ANONYMOUS DATA FOR RESEARCH,
41 STATISTICAL ANALYSIS OR EDUCATIONAL PURPOSES.

42 2. AN AGENCY EMPLOYEE'S DISCLOSURE OF AN OBSERVATION OF A ~~[PEER~~
43 ~~SUPPORT PARTICIPANT] [CRISIS RESPONSE SERVICES DESIGNATED PERSON] OUTSIDE~~
44 ~~OF A [PEER SUPPORT] [CRISIS RESPONSE SERVICES] COUNSELING SESSION THAT IS~~
45 ~~NOT CONTAINED IN ANY [PEER SUPPORT][CRISIS RESPONSE SERVICES]~~
46 ~~COMMUNICATION.~~

1 3. AN AGENCY LAW ENFORCEMENT OFFICER'S DISCLOSURE OF KNOWLEDGE
2 ABOUT A ~~[PEER SUPPORT PARTICIPANT]~~ [CRISIS RESPONSE SERVICES DESIGNATED
3 PERSON] THAT IS NOT GAINED FROM ~~[PEER SUPPORT]~~[CRISIS RESPONSE SERVICES]
4 COMMUNICATION.

5 E. FOR THE PURPOSES OF THIS SECTION:

6 [1. "CRISIS RESPONSE SERVICES" HAS THE SAME MEANING PRESCRIBED IN
7 SECTION 38-1111.]

8 ~~[1.]~~ [2.] "[PEER SUPPORT][CRISIS RESPONSE SERVICES] COMMUNICATION"
9 MEANS ANY ORAL OR WRITTEN [CRISIS RESPONSE SERVICES] COMMUNICATION MADE IN
10 THE COURSE OF, OR APPLICATION FOR, A ~~[PEER SUPPORT]~~ COUNSELING SESSION OR
11 ANY COMMUNICATION BY A ~~[PEER support PARTICIPANT]~~ [CRISIS RESPONSE
12 SERVICES DESIGNATED PERSON] REGARDING THE CONTENTS OF A ~~[PEER SUPPORT]~~
13 [CRISIS RESPONSE SERVICES] COUNSELING SESSION TO ANOTHER ~~[PEER SUPPORT~~
14 ~~SPECIALIST][CRISIS RESPONSE SERVICES MEMBER]~~, STAFF MEMBER OF A ~~[PEER~~
15 ~~SUPPORT COUNSELING][CRISIS RESPONSE SERVICES]~~ PROGRAM OR THE SUPERVISOR OF
16 A ~~[PEER SUPPORT SPECIALIST]~~ [CRISIS RESPONSE SERVICES PROGRAM].

17 ~~[2.]~~ [3.] "[PEER SUPPORT][CRISIS RESPONSE SERVICES] COUNSELING
18 SESSION" MEANS ANY COUNSELING FORMALLY PROVIDED THROUGH A [PEER SUPPORT
19 COUNSELING] [CRISIS RESPONSE SERVICES] PROGRAM BETWEEN A [PEER SUPPORT
20 SPECIALIST][CRISIS RESPONSE SERVICES MEMBER] AND ONE OR MORE PUBLIC SAFETY
21 EMPLOYEES.

22 ~~[3. "PEER SUPPORT SPECIALIST" MEANS A PUBLIC SAFETY EMPLOYEE WHO IS~~
23 ~~DESIGNATED BY THE AGENCY TO PROVIDE PEER SUPPORT COUNSELING AND WHO HAS~~
24 ~~RECEIVED TRAINING IN BOTH PEER SUPPORT COUNSELING AND IN PROVIDING~~
25 ~~EMOTIONAL AND MORAL SUPPORT TO PUBLIC SAFETY EMPLOYEES WHO HAVE BEEN IN OR~~
26 ~~EXPOSED TO AN EMOTIONALLY TRAUMATIC EXPERIENCE IN THE COURSE OF~~
27 ~~EMPLOYMENT.]~~

28 4. "DESIGNATED PERSON" MEANS A LAW ENFORCEMENT OFFICER OR A
29 CIVILIAN EMPLOYEE OF A LAW ENFORCEMENT AGENCY.]

30 Enroll and engross to conform
31 Amend title to conform

KEVIN PAYNE

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